



EMERGENCY PROVISIONS — FULL MIND MAP

Topic-wise · Fully Explained · Hinglish · SSC / BPSC / BSSC / Railway



Topics in this chapter:

1. **Emergency Framework — Articles 352, 356, 360 & Union Duty**
2. **National Emergency — Article 352: Grounds & 44th Amendment**
3. **National Emergency — Cabinet Advice, Approval & Revocation**
4. **Effects of National Emergency — Taxes, FRs & Legislature Terms**
5. **1975 Emergency & Article 352 vs Article 356**
6. **President's Rule — Article 356: Trigger, Powers & Consequences**
7. **President's Rule — Judicial Review, Duration & Historical Facts**
8. **Financial Emergency — Article 360: Approval & Consequences**
9. **Exam Traps — Disputed / Historical / Quote Questions**

1. Emergency Framework — Articles 352, 356, 360 & Union Duty

- Indian Constitution source ke mutabik 3 emergency types deta hai: National Emergency (Art. 352), State Emergency / President's Rule (Art. 356) aur Financial Emergency (Art. 360). Different grounds ko mix na karo. [Q1, Q8]
- Article 355 Union ka duty clause hai: har State ko external aggression aur internal disturbance se protect karna aur State government ko Constitution ke according chalna ensure karna. [Q2, Q3]

2. National Emergency — Article 352: Grounds & 44th Amendment

- Article 352 ke under National Emergency President proclaim kar sakta hai jab security ko War, External Aggression ya Armed Rebellion se threat ho. Failure of State constitutional machinery Article 356 ka matter hai, Article 352 ka nahi. [Q4, Q7, Q9, Q13, Q25]
- 'Internal disturbance' ab Article 352 ka ground nahi hai. Source ke mutabik 44th Constitutional Amendment Act, 1978 ne ise 'Armed rebellion' se replace kiya; communal clashes ya general threat to internal peace standalone ground nahi. [Q5, Q6, Q10]
- Assertion–Reason source: Article 352 emergency proclamation se deal karta hai; emergency kabhi bhi arise ho sakti hai, lekin yeh second statement Article 352 ka explanatory reason nahi banti. [Q12]

3. National Emergency — Cabinet Advice, Approval & Revocation

- Article 352(3): President proclamation tabhi issue karega jab Union Cabinet ka decision usse writing mein communicate kiya gaya ho — sirf PM ki personal advice ya generic Council of Ministers wording par source focus nahi karta. [Q11]
- National Emergency proclamation ko Parliament ke dono Houses se 1 month ke andar approval chahiye; source questions approval ke liye special majority / two-thirds pattern ko test karte hain. [Q14, Q15, Q16]
- Source Q14 ke according revocation ke liye Lok Sabha simple-majority resolution wala route test hota hai; joint sitting approval pattern ko correct nahi maana gaya. [Q14]

4. Effects of National Emergency — Taxes, FRs & Legislature Terms

- National Emergency ke time President Article 354(1) route se Union–State tax distribution (Articles 268–281) related provisions ko modify/suspend kar sakta hai; source isko Financial Emergency se distinguish karta hai. [Q17]
- Article 359 ke under President FRs ke enforcement ke liye court move karne ka right suspend kar sakta hai, lekin Articles 20 aur 21 protected rehte hain. [Q18, Q20, Q21]
- Article 19 source ke mutabik Article 358 ke under automatically suspend hota hai only when emergency War ya External Aggression ground par ho; Article 359 ke scope ko is automatic rule se alag rakho. [Q19]

- National Emergency ke dauran Lok Sabha ka term Parliament law se extend kar sakti hai — ek baar mein max 1 year, aur emergency end hone ke 6 months se aage nahi. State Legislative Assembly term bhi Parliament law se extend kar sakti hai. [Q22, Q23]

5. 1975 Emergency & Article 352 vs Article 356

- Source ke historical question ke mutabik President Fakhruddin Ali Ahmed ne 'internal disturbance' ground par 25 June 1975 ko Emergency proclaim ki; source ise 21 March 1977 tak effective batata hai. [Q24]
- Article-number trap: Article 352 = National Emergency; Article 356 = State constitutional machinery failure / President's Rule. Source Assertion–Reason isi confusion ko directly test karta hai. [Q25]

6. President's Rule — Article 356: Trigger, Powers & Consequences

- Article 356 ke under President's Rule mainly Governor ki report (ya otherwise satisfaction) par impose ho sakta hai jab State government Constitution ke according nahi chal sakti. [Q26, Q27]
- President's Rule mein State executive dismiss hota hai; State Legislature suspended ya dissolved ho sakta hai. Legislature ki powers Parliament ya Parliament ke authority ke under exercisable ho jaati hain — Assembly automatic dissolution zaroori nahi. [Q29, Q30]
- S.R. Bommai framing source ke mutabik constitutional machinery failure objective reality hona chahiye aur Article 356 proclamation Supreme Court judicial review ke under aa sakta hai. [Q31]

7. President's Rule — Judicial Review, Duration & Historical Facts

- Source Q31 ke mutabik proclamation ko 2 months ke andar each House of Parliament approve kare; initial stage par Assembly ko suspend kiya ja sakta hai, approval se pehle dissolution ko source incorrect immediate consequence batata hai. [Q31]
- President's Rule maximum 3 years tak extend ho sakta hai, source strict conditions ko active National Emergency / Election Commission certification se link karta hai. [Q32]
- Historical/state-count source (till 2019): Manipur 10, Uttar Pradesh 9, Bihar 8, Odisha 6 President's Rule instances. [Q33]
- Source options mein earliest President's Rule question ka marked answer PEPSU hai, lekin explanation 1951 Punjab aur 1953 PEPSU dono mention karta hai — isliye wording ko as-source hi yaad rakho. [Q34]

8. Financial Emergency — Article 360: Approval & Consequences

- Article 360 Financial Emergency proclamation 2 months ke baad cease karega unless Parliament ke dono Houses resolutions se approve kar dein. [Q35]
- Financial Emergency mein President Union/State employees ke salaries & allowances reduce karne ki directions de sakta hai; source specifically Supreme Court aur High Court Judges ko bhi reduction scope mein include karta hai. [Q35, Q36]
- State Legislature ke Money Bills/other financial bills ko President consideration ke liye reserve karne ki direction di ja sakti hai; Q36 source is wording ki necessity vs discretion nuance par dispute flag karta hai. [Q36]
- Source ke mutabik Article 360 India mein ab tak use nahi hua; Financial Emergency kabhi declare nahi hui. [Q37, Q38]

9. Exam Traps — Disputed / Historical / Quote Questions

⚠ EXAM TRAP — Q19 — Article 358 vs 359

Source question starred/disputed hai: Article 19 ka automatic suspension Article 358 context hai, jabki President Article 359 se other FR enforcement (20/21 excepted) suspend kar sakta hai. Multiple options different contexts mein technically fit ho rahe the. [Q19]

⚠ EXAM TRAP — Q28 — Historical 'Governor's Rule'

Source is question ko disputed/omitted batata hai: historical J&K mein Section 92 ke under Governor's Rule tha; post-2019 J&K UT ban gaya. Manipur, Mizoram aur Meghalaya ke liye source separate historical position note karta hai. [Q28]

⚠ EXAM TRAP — Q34 — PEPSU vs Punjab Wording

Marked answer PEPSU hai, par source explanation earliest instance ke context mein 1951 Punjab aur 1953 PEPSU mention karta hai. Is internal wording tension ko silently reconcile nahi kiya gaya. [Q34]

⚠ EXAM TRAP — Q36 — Financial Bills Reservation

Source ke hisab se statements 1 & 3 clear correct hain; Money Bills ko reserve kiya 'ja sakta hai' if directed, lekin blanket compulsory/never-required wording dono problematic hain. Isliye question starred/disputed hai. [Q36]

- Quote-based source fact: “The emergency power of the President is a fraud with the Constitution” — K. M. Nambiar. [Q39]